STANDARD OPERATING PROCEDURE			P-3900	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **12/18/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES N.R.S. 60-6196 THROUGH 60-6211.07 N.R.S. 60-4163 THROUGH 60-4170 H.R.S. 707-700		
SUBJECT DRIVING UNDER THE INFLUENCE INVESTIGATIONS		CROSS-REFERENCE P-3600 VEHICLE TOWING PROCEDURES P-3800 TRAFFIC LAW ENFORCEMENT P-3900 DRIVING UNDER THE INFLUENCE OF DRUGS INVESTIGATIONS P-4700 ARRESTS/CITATIONS P-4710 TRANSPORTATION OF STREET ARRESTS G-6300 USE OF RESTRAINTS A-7100 EVIDENCE AND PROPERTY		

I. Purpose:

The purpose of this policy is to establish procedures for conducting driving under the influence (DUI) investigations.

II. Policy:

Individuals operating a motor vehicle while under the influence of alcohol or other drugs present a significant hazard to the public. The Sarpy County Sheriff's Office shall make a vigorous effort to detect impaired drivers and enforce the law as intended by the Legislature. Deputies shall stop any driver when there is probable cause to believe he or she is operating a motor vehicle while impaired from the effects of alcohol or other drugs and shall arrest when probable cause exists.

III. Definitions:

A. CONTACT/ARRESTING DEPUTY: The contact/arresting deputy shall be the deputy completing the traffic stop and responsible for the arrest.

B. COVER DEPUTY: The cover deputy shall be the deputy responding to provide back-up for the contact deputy.

C. MENTALLY DEFECTIVE: A person suffering from a disease, disorder, or defect which renders the person incapable of appraising the nature of the person's conduct.

IV. Procedure:

A. Initial Stop and Contact with Driver-Contact Deputy Responsibilities:

1. Deputies shall establish probable cause prior to initiating a traffic stop for a suspected impaired driver, but should not allow an impaired driver to continue driving simply to observe further traffic violations.

2. If possible, deputies should record the driving behavior of suspected impaired drivers using the in-car audio/video recording system.

3. Deputies shall initiate a traffic stop following the guidelines established in P-3600 Traffic Law Enforcement.

4. Upon initial contact with the suspected impaired driver, the deputy shall note any observations that indicate impairment (e.g. slurred speech, difficulty locating documents, the smell of alcoholic beverages, etc.).

5. The deputy may ask the driver to turn off the vehicle and remove the keys from the ignition.

6. After obtaining the proper documents, the deputy shall return to his or her patrol unit and complete a records check of the party including previous DUI arrests. The deputy shall also request a second unit for field sobriety.

B. Field Sobriety Testing-Contact Deputy Responsibilities:

1. If possible, the contact deputy shall wait for the arrival of a cover deputy before beginning field sobriety testing.

2. Field sobriety tests should be performed in an area that provides safety for the subject and the deputies.

3. The contact deputy should check the subject's mouth for foreign objects (e.g. gum, chewing tobacco, coins) prior to beginning field sobriety testing.

4. Deputies should use standardized field sobriety tests when possible. The test results may be included on a Sarpy County Sheriff's Office DUI coversheet. These tests include:

a) The Horizontal Gaze Nystagmus Test
b) The One Leg Stand Test
c) The 9-step Walk and Turn Test

5. Deputies may use additional field sobriety tests and shall record those test results.

6. If inclement weather conditions are present or standard field sobriety tests could endanger the safety of the deputy or the suspect, alternative field sobriety tests may be used (e.g. HGN may be accomplished inside of a cruiser). Subjects may refuse physical tests and may be allowed to wait inside the cruiser until the PBT can be utilized. The results of these tests shall be recorded in the deputy's arrest report.

7. Generally, all field sobriety testing should be recorded by the in-car audio/video recording system.

8. If a driver does not show substantial impairment on the field sobriety tests (or tests below .08 on the preliminary breath test and drug impairment is not suspected), the deputy should consider a citation for the original observed offense or for careless or reckless driving if there were multiple observed offenses.

C. Field Sobriety-Cover Deputy Responsibilities:

1. The cover deputy is responsible for the safety of the contact deputy and the suspect during field sobriety testing.

2. The cover deputy shall place himself or herself in a position to observe the suspect and any passengers in the vehicle.

3. Vehicle passengers should not be allowed to interfere with the DUI investigation.

D. Preliminary Breath Test-Contact Deputy Responsibilities:

1. Deputies assigned a preliminary breath test unit (alco-sensor) should verify the accuracy of the unit on a bi-weekly basis. The accuracy test date and results shall be documented on the Preliminary Breath Test Accuracy Verification Form that shall be kept with each unit. Upon completion, this form shall be turned into the Preliminary Breath Test Deputy.

2. If after field sobriety testing the contact deputy has reasonable grounds to believe the subject is under the influence of alcohol or other drugs, the subject shall be directed to submit to a chemical test. Any person who refuses to submit to a preliminary breath test shall be guilty of a Class V misdemeanor (N.R.S. 60-6197.04)

3. The contact deputy shall ensure that he or she has observed the subject for a minimum of **16** minutes prior to administering the preliminary breath test.

4. The test shall be performed according to Attachment 4 Checklist Technique To Be Used by Class C Permit Holders for Preliminary Breath Tests. The

Checklist form and a copy of the Preliminary Breath Test Accuracy Verification Form shall be completed and included with the arrest report. For internal tracking purposes, the PBT unit serial number shall be noted on the top of the Attachment 4.

E. Arrest-Contact Deputy Responsibilities:

1. Upon determining probable cause (see P-4700 Arrests/Citations) a driver is in violation of the state law regarding driving under the influence of alcohol or drugs the suspect shall be advised he or she is under arrest for driving under the influence. An individual driving a motor vehicle or in actual physical control of a motor vehicle with a blood alcohol level of .08 of one gram or more by weight of alcohol per one hundred milliliters of blood or .08 of one gram or more by weight of alcohol per two hundred ten liters of his or her breath (i.e. .08 Blood Alcohol Concentration (BAC) or higher), is in violation of state law.

2. The suspect shall be handcuffed, searched incident to the arrest, and placed in a patrol unit (see G-6300 Use of Restraints).

3. The suspect shall then be transported to the LEC or local hospital for further chemical testing (see P-4710 Transportation of Street Arrests).

4. The suspect shall not be allowed to ingest any substance (other than emergency medication) after being placed in custody. A subject may be permitted to rinse his or her mouth with water to remove chewing tobacco, vomit, etc.

F. Vehicle Disposition-Cover Deputy Responsibility:

1. All vehicles towed by the Sarpy County Sheriff's Office shall be inventoried prior to being towed.

2. The cover deputy shall be responsible for towing the vehicle and completing a Vehicle Tow/Impound Form (see P-3600).

3. The vehicle may be released to the vehicle owner, if he or she is on location and is not under the influence of alcohol or drugs. Under certain circumstances, the vehicle may also be release to a licensed driver with permission of the owner and the shift supervisor.

G. Chemical Testing and Refusal-Contact Deputy Responsibilities:

1. Prior to any chemical test, the arresting deputy shall note the suspects name and DOB on the Post Arrest Chemical Test Advisement form, then read them the initial sentence.

2. When the arresting deputy is requesting a breath test from the suspect they shall read section 1 of the Post Arrest Chemical Test Advisement to the suspect. The arresting deputy shall mark section one. The suspect, arresting deputy and witnessing deputy/officer shall sign the advisement. The suspect may refuse to sign the form and still take the chemical test. If the suspect refuses to take the breath test they can be charged with DUI (N.R.S. 60-6,196) and refusal to submit to a chemical test (N.R.S. 60-6,197).

3. When the arresting deputy is requesting a blood or urine test the arresting deputy shall read section 2 of the Post Arrest Chemical Test Advisement to the suspect. The deputy shall mark that section 2 has been read to the suspect:

    a. Consent: Needs to be given freely and voluntarily without a threat or promise. The deputy shall note on the form that consent has been received. (Mentally Defective or unconscious individuals cannot give consent). The suspect, deputy and witnessing deputy/officer shall sign the form. The arresting deputy may proceed with sample retrieval procedures.

    b. Refusal: The deputy shall mark on the form that the suspect has refused to submit. The suspect, arresting deputy and witnessing deputy/officer shall sign the form (if the suspect refuses to sign the deputy shall write “Refused to Sign”).

        i. The arresting deputy shall complete an “Affidavit In Support of Search Warrant (DUI Blood Draw)”.

        ii. With the approval of a supervisor or command officer the arresting deputy may seek the assistance of the on-call investigator and/or county attorney when completing the affidavit/search warrant.

        iii. The arresting deputy will deliver the affidavit/search warrant to a Sarpy County Court Judge. (Assistance with contacting a Judge may be sought through the County Attorney’s Office).

        iv. If the Judge declines the Search Warrant the arresting deputy shall seek the assistance of a supervisor and/or on-call county attorney.

        v. If the Judge signs the Search Warrant the arresting deputy will read and mark section 3 of the Post Arrest Chemical Test Advisement:

            1. Consent: Shall be received as noted in Paragraph 3 A (consent). The suspect, deputy and witnessing deputy/officer shall sign the form (if the suspect gives verbal consent but refuses to sign the deputy shall write “Refused to Sign”). The arresting deputy shall then proceed with sample retrieval procedures. (A signed search warrant allows for a chemical

test from a person under EPC or unconscious). The arresting deputy may cite, arrest or wait until the receipt of test results for further action.

2. Refusal: The deputy shall mark that the suspect has refused to submit to a test. The suspect, deputy and witnessing deputy/officer shall sign the form (if the suspect refuses to sign then the deputy shall write "Refused to Sign"). The suspect can be charged with DUI (N.R.S. 60-6,196) and refusing to submit to a chemical test (N.R.S. 60-6,197).

vi. Upon the execution of the search warrant (consent or refusal) the arresting deputy shall complete the "Return Inventory" and ensure that it's forwarded to the Clerk of the County Court within 10 days.

H. Administrative License Revocation:

1. If an individual that has a BAC of .08 or higher by breath or blood, or refuses to submit to a chemical test (not for driving under the influence of drugs), the arresting deputy shall:

a. Read to the suspect the Verbal Notice of Revocation from the Sworn Report, Notice of Revocation and Temporary License form.

b. Impound the suspect's operator's license. The license shall be attached to the arrest report and submitted to transcription.

c. Complete the Sworn Report, Notice of Revocation and Temporary License form and issue the yellow copy to the suspect.

i. If the suspect does not have a valid license, the form shall be completed and the yellow copy shall be issued but is not a valid license.

ii. The arresting deputy shall advise the suspect to read the back of the yellow copy to make him or her aware of the notice and how to request a Revocation Hearing or obtain an Interlock Permit or Sobriety Program Permit.

iii. Test Results Not Immediately Available (Blood Test):

1. The suspect's operator's license shall not be impounded.

2. The arresting deputy shall complete only the top portion of the Sworn Report, Notice of Revocation and Temporary License form stopping at the "reasons for the arrest" section.

3. The suspect shall not be given the yellow copy.

4. The arresting deputy shall retain the Sworn Report, Notice of Revocation and Temporary License form.

5. When the arresting deputy receives the test results, he or she shall complete the form and sign it in the presence of a supervisor, who shall notarize the form. The arresting deputy shall return the notarized form to transcription.

6. The Department of Motor Vehicles will serve the Sworn Report, Notice of Revocation and Temporary form to the suspect by certified mail.

7. Deputies receiving test results shall generate a supplemental report under the original report number indicating the result(s), date, time, etc.

I. Documentation-Arresting Deputy Responsibilities: The arresting deputy shall ensure that all of the following items are included with the DUI arrest report.

1. Incident/Arrest Report.

    a. The deputy initiating the traffic stop, if not the arresting deputy, must also complete a supplemental report, using the incident report's report number, describing the probable cause for the stop.

2. DUI Coversheet (optional).
3. Citation with all appropriate charges.
4. Attachment 4 Checklist Technique To Be Used by Class C Permits Holders for Preliminary Breath Tests form (if preliminary breath test administered).
5. Post Arrest Chemical Test Advisement form (signed by witness and driver)
6. Sworn Report, Notice of Revocation and Temporary License form (signed and notarized)
7. Datamaster Checklist (if breath test administered).
8. Copy of Datamaster Test Results (if breath test administered).
9. Suspect's Operator's License (if impounded).

J. Late DUI Arrest: A deputy may arrest a driver for DUI at a location other than the scene of a violation (commonly a hit and run accident) without a warrant under the following conditions:

1. The arrest must be made within a reasonable amount of time after the occurrence of the violation (generally within 1 hour of the violation).

2. The deputy must have probable cause to believe the suspect was the driver of the vehicle.

3. If the suspect has had any alcoholic beverages since leaving the scene of the violation, the deputy must have articulable probable cause to believe the amount consumed after leaving the scene did not lead to the observed impairment.

K. Suspect's Right to His or Her Own Physician: N.R.S. 60-6199 states:

"The person tested will be permitted to have a physician of his or her choice evaluate his or her condition and perform or have performed whatever laboratory test he or she deems appropriate in addition to and following the test or tests administered at the direction of the officer. If the officer refuses to permit such additional tests to be taken, then the original test or tests will not be competent as evidence. Upon the request of the person tested, the results of the test or tests taken at the direction of the officer will be made available to him or her."

Deputies should advise suspects requesting an independent test that they may do so after they have completed the booking process and posted bond.

L. Right to Call an Attorney Prior to Testing:

1. A suspect has no specific right to contact an attorney prior to testing, but if a suspect requests to speak to his or her attorney prior to submitting to a chemical test, he or she may be allowed to use a telephone to contact that attorney.

2. If after a reasonable time (approximately 10 minutes), the suspect is unable to make contact with his or her attorney, he or she shall be required to submit to the chemical test or refuse. The deputy should document allowing the suspect the opportunity to contact his or her attorney.

M. Commercial Motor Vehicles-Deputy Responsibilities: Operators of commercial motor vehicles are subject to a separate and distinct commercial motor vehicle license disqualification hearing procedure under Nebraska Revised Statute 60-4163 through 60-4170.

1. Operators of commercial motor vehicles who have a blood alcohol content over .08 shall be treated as a standard DUI and the procedures above shall apply.

    a. If an operator of a commercial motor vehicle has a blood alcohol content between .04 and .08, the deputy shall:

        i. Place the driver out of service for 24 hours (for assistance with this, the deputy may contact the Nebraska State Patrol).

ii. Complete a Commercial Driver's License (CDL) Sworn Report form, to be included with the deputy's arrest report.

iii. The CDL Sworn Report form shall be signed in the presence of a notary.

iv. The operator of the commercial motor vehicle shall be issued the yellow copy

2. The Administrative License Revocation form shall **NOT** be completed.

3. The operator's license shall **NOT** be impounded.

4. If a deputy is unsure if the operator of a commercial motor vehicle has a blood alcohol level over or under .08 and the test results are not readily available (blood test), the Post Arrest Chemical Test Advisement form shall be read to the operator and completed. After the test results are received, if the operator's blood alcohol level was .08 or higher than the standard DUI procedures are followed. If the blood alcohol level was between .04 and .08 only the Commercial Driver's License Sworn Report form shall be completed.

N. **Refusal to submit to a preliminary breath test:** If the operator of a commercial motor vehicle refuses to submit to a preliminary breath test, he or she shall be charged with a Class V misdemeanor (N.R.S. 60-4164) and shall be required to submit to a chemical test.

O. **Refusal to submit to a chemical test:** If the operator of a commercial motor vehicle refuses to submit to a chemical test, he or she shall be read the Post Arrest Chemical Test Advisement form and advised a refusal shall be charged under both the standard DUI refusal and the commercial motor vehicle refusal. If the operator continues to refuse to submit to a chemical test, both the Administrative License Revocation form and the Commercial Driver's License Sworn Report form shall be completed.

P. **Booking Procedures**

1. The following procedures shall only apply to DUI investigations involving alcohol. All suspects charged with driving under the influence of drugs (DUI-D) shall be booked into jail.

2. Suspected impaired drivers who are placed under arrest in violation of N.R.S 60-6,196 (DUI) will be transported to the Sarpy County Jail DataMaster room for testing purposes. Other DataMaster locations within Sarpy County may be used only if the Datamaster at the Sarpy County Jail is inoperable. If another DataMaster location is used, a deputy shall have at least one other law enforcement officer assisting him or her during the testing process.

3. If the DataMaster testing confirms that the suspect has committed a violation of N.R.S. 60-6-196 (DUI), the deputy shall book the suspect into jail.